

The Department of Agriculture, Fisheries and Forestry must assess the biosecurity risk of goods that have been exported from Australia but are now returning to Australia. This assessment must happen before goods are brought back into Australia. The department needs to verify that the product is of Australian origin and whether it's likely to contain or have been contaminated with a disease or pest that may compromise Australia's highly favourable animal, plant and human health status. Returning Australian goods are conditionally non-prohibited goods under the Biosecurity Act 2015, and will be subject to conditions if they are approved to be brought back into Australia.

You may need an import permit.

The department understands that products that have been exported from Australia may have to be returned at short notice. To expedite the assessment process, applications for an import permit for returning Australian products must be accompanied by the following information:

[expand all]

The department's export health certificate

- A copy of the export certificate issued by the Department of Agriculture, Fisheries and Forestry for the specific consignment.
- Bills of Lading for outgoing and return journey.

The form in which the product is returning

Provide details such as whether the:

- container seals are intact (container unopened)
- container seals broken but product (e.g. meat) intact in original container
- container seals broken and product (e.g. meat) samples withdrawn
- containers unpacked under foreign quarantine supervision
- containers unpacked but not under foreign quarantine supervision, and/or
- container cleared quarantine and currently not under quarantine supervision.

Each subsequent point above represents an increased biosecurity risk due to greater potential for contamination or substitution.

The reason for return

Provide

- details on why the product was rejected or why the product is being returned
- supporting documentation (e.g. laboratory results, customs report, etc.).

Whether product is for export or domestic consumption

If the product is for domestic consumption it may be subject to the Imported Food Control Act 1992. The department may inform the relevant state jurisdiction about the product and the reason for its return to Australia.

Australian port that the product is returning to

For example, Melbourne, Sydney, etc.

Regulatory action on prescribed goods returned to Australia

- Products must be assessed for biosecurity risk before they are returned to Australia, and they may need an import permit.
- The department's permit issuing areas will make an assessment based on the information provided by the importer and relevant authorities.
- If the goods cannot be re-imported but are already in the country, they must be destroyed or re-exported.
- In cases where a permit is issued or the department deems that a permit is not required, the importer must declare whether the goods are destined for the domestic market or for re-export.

The department reserves the right to request additional information including government certification from the 'exporting' country to provide assurance that the returning Australian product has not been contaminated or substituted.

Domestic market

- Food products for the domestic market may be tested as part of the department's Imported Food Inspection Scheme, which checks that foods are safe for human consumption and comply with the relevant standards. Importers will be informed if the food requires inspection under this scheme.
- If the product is not referred to the Imported Food Inspection Scheme, the state or territory to which the food is destined may be notified. It is possible that the state or territory will deem the product unacceptable and seek its destruction.

Export

- If the product is to be re-exported it will not be subject to testing under the Imported Inspection Scheme or by state or territory jurisdictions. The owner of the goods must ensure that all the requirements of the Export Control Act 2020 are met.